Innovationsverbund
Öffentliche Gesundheit

GEFÖRDERT VOM
Bundesministerium für Bildung und Forschung

Fair Share Cost Tokens (FSCT)

A way to fund Open Source Software Stewards?

This is neither a blockchain nor an AI talk

13.04.2026 - CRA Monday

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Agenda

- Motivation, problem and approach
- The CRA from a supply chain perspective
- Economic operators and incentives in the ecosystem
- Fair share cost tokens
- A future part of the European Open Digital Ecosystem?

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The motivation

- FOSS is underfunded

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- CRA compliance will mobilize a non-negligible amount of funds

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The motivation

- FOSS is underfunded
- CRA compliance will mobilize a non-negligible amount of funds

- **Provide a way for FOSS projects to absorb those funds**

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The problem

Sustainable Trust in FOSS:

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The problem

Sustainable Trust in FOSS:
There is currently no sustainable financing model
for FOSS projects
in the EU
that on
an institutional level
makes them
reliable to stakeholders
not involved in their gouvernance.

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The problem & the approach

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There is currently no sustainable financing model for FOSS projects in the EU that on an institutional level makes them reliable to stakeholders not involved in their gouvernance

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The problem & the approach

Sustainable Trust:
There is currently no sustainable financing model for FOSS projects in the EU that on an institutional level makes them reliable to stakeholders not involved in their gouvernance

Legal Accountability

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The problem & the approach

Sustainable Trust:
There is currently no sustainable financing model for FOSS projects in the EU that on an institutional level makes them reliable to stakeholders not involved in their gouvernance

Legal Accountability:
Given FOSS projects have
a legal design that allows to hold them accountable
by 3rd parties
if they derivate from their "mission statement" that
allows for pay per use micro donations.

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The CRA - Goals

- Reducing vulnerabilities in digital products
- Cyber Security maintenance throughout a product’s life cycle
- Empower users to make informed decisions

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The CRA - practical meaning

- Reducing vulnerabilities in digital products
- Cyber Security maintenance throughout a product's life cycle
- Empower users to make informed decisions

It introduces the concept of product liability for all products that include software and the corresponding supply chains.

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The CRA - a program dependency graph

Manufacturer

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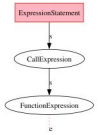
The CRA - a program dependency graph



Manufacturer

Open Source

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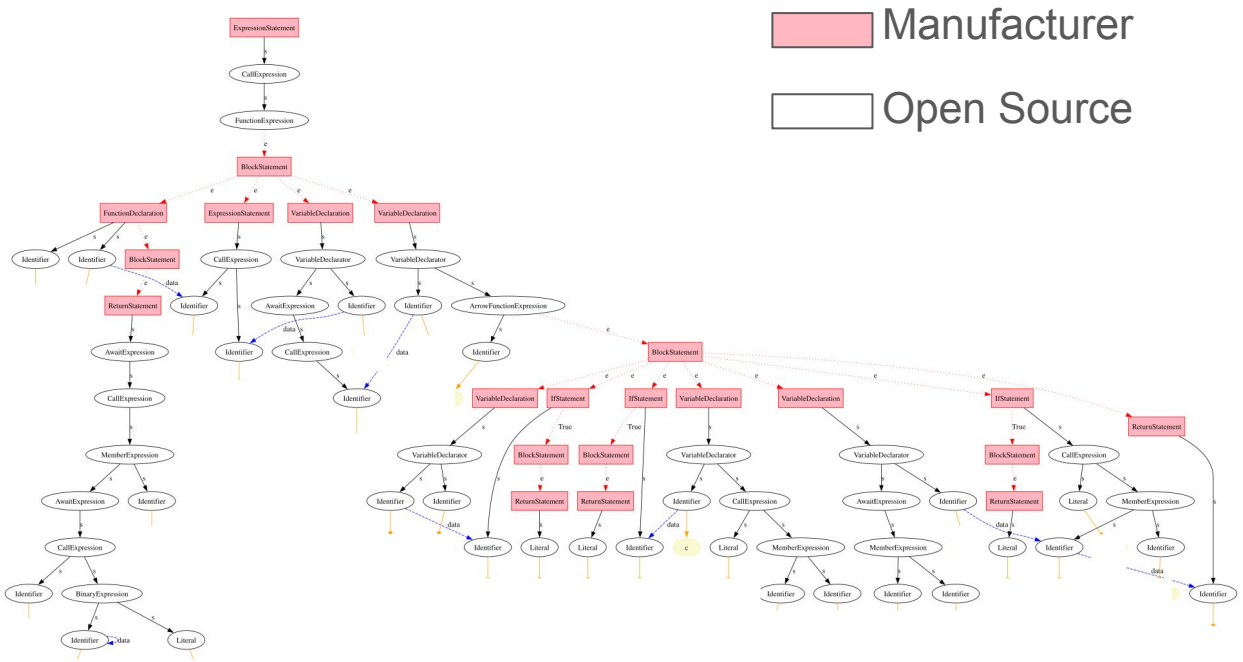
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CallExpression
FunctionExpression
BlockStatement
FunctionDeclaration
ExpressionStatement
VariableDeclaration
VariableDeclaration
Identifier
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CallExpression
VariableDeclarator
VariableDeclarator
ReturnStatement
Identifier
AwaitExpression
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BlockStatement
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BlockStatement
CallExpression
AwaitExpression
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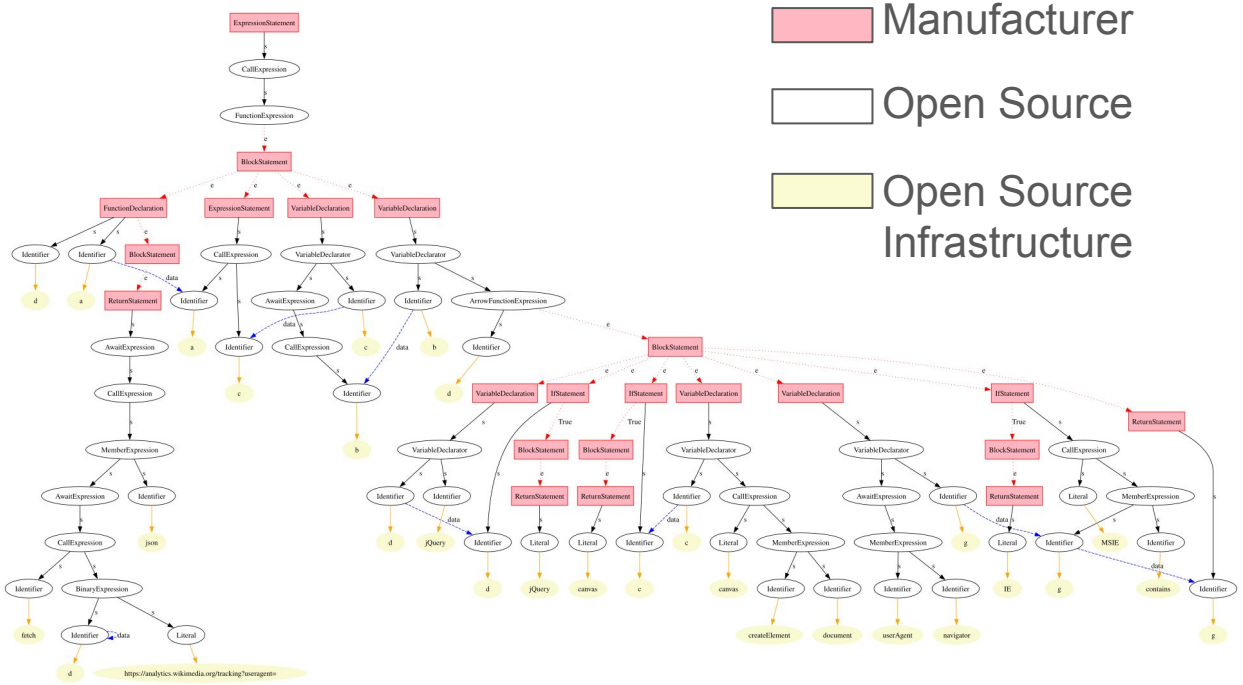
The CRA - a program dependency graph



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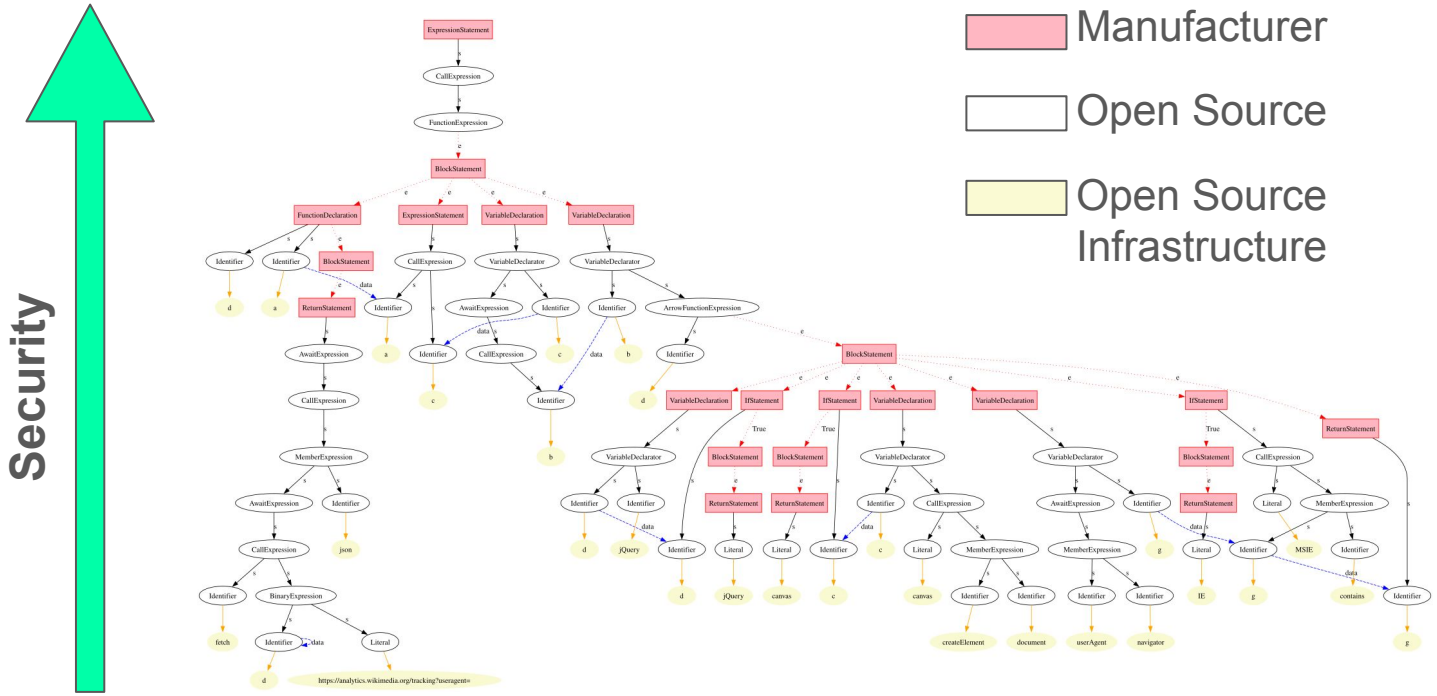

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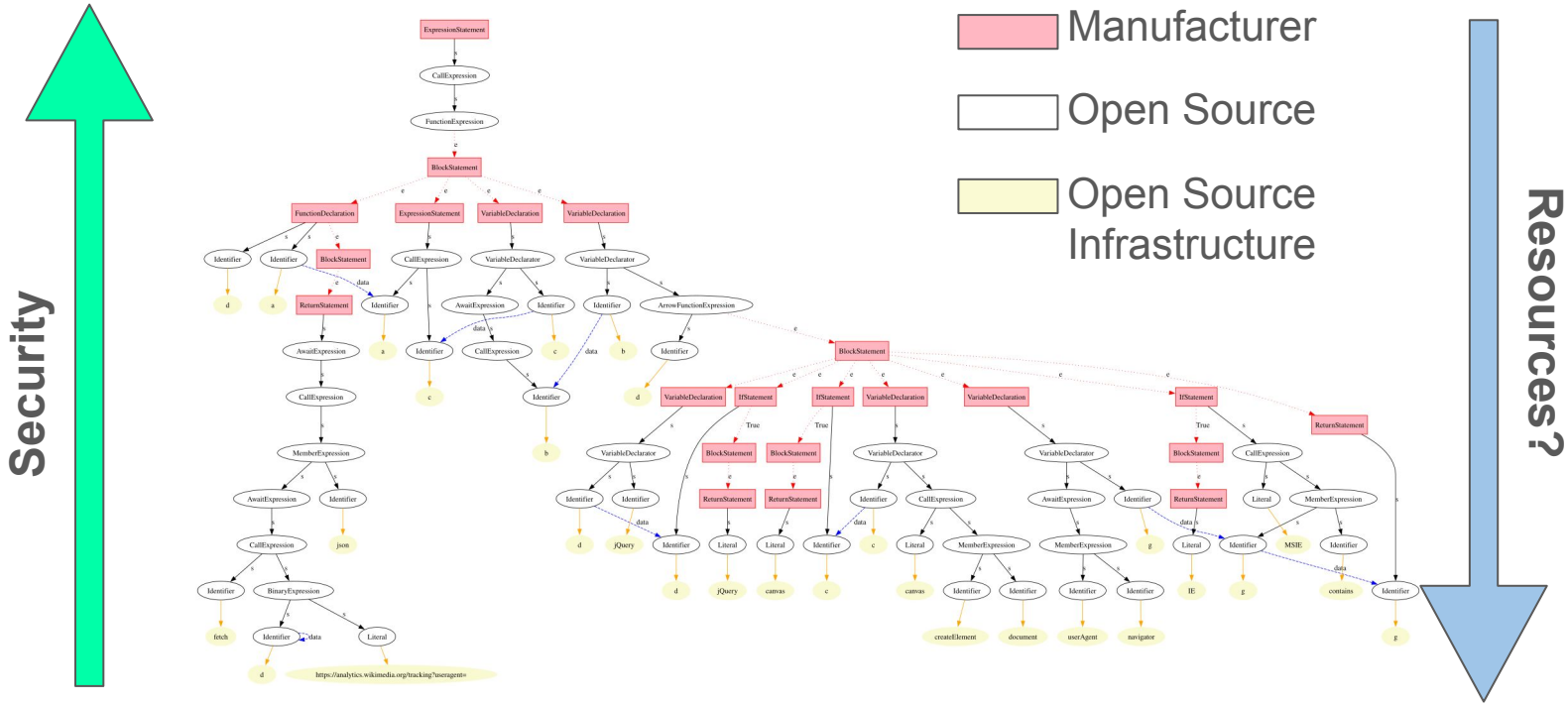

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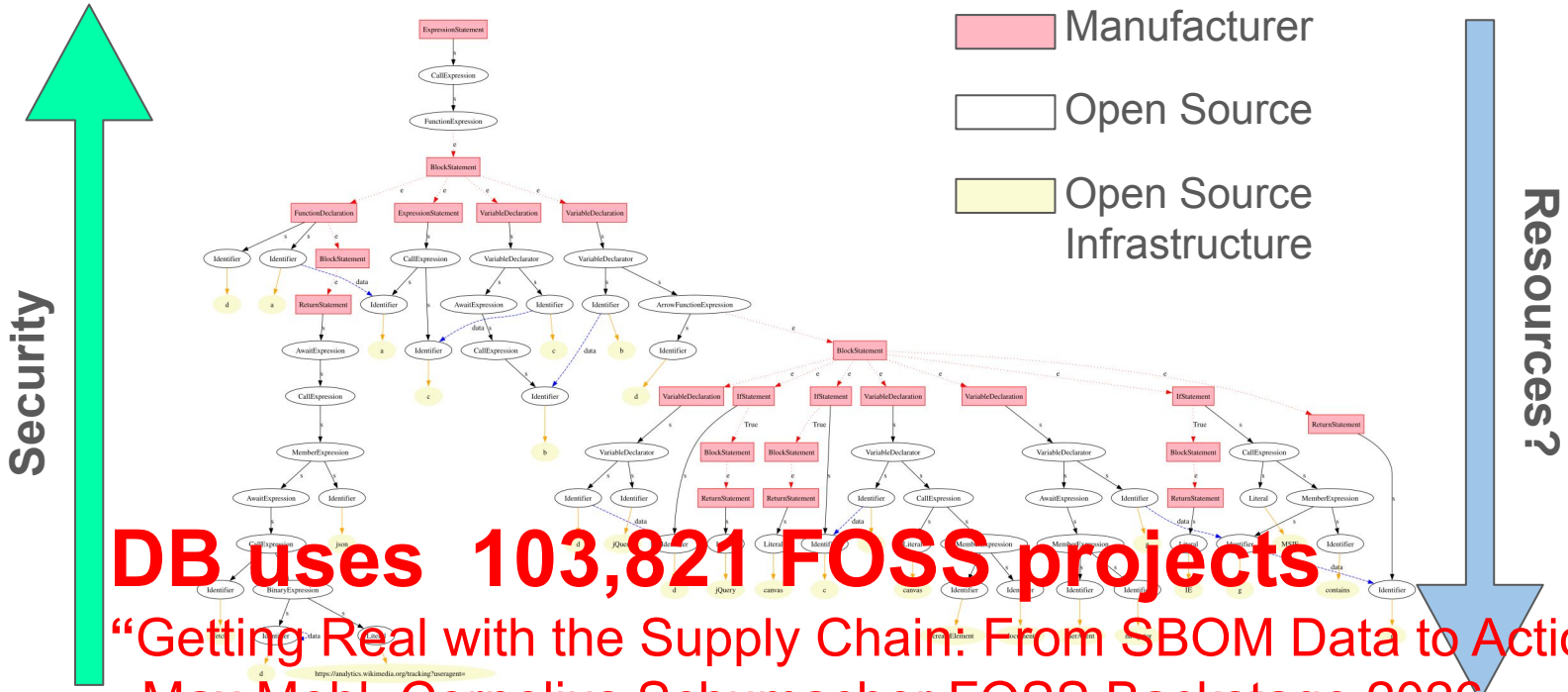

DB uses 103,821 FOSS projects

“Getting Real with the Supply Chain: From SBOM Data to Action”
- Max Mehl, Cornelius Schumacher FOSS Backstage 2026

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The CRA defines economic operators (12):

Manufacturers (13)

Open Source Software Stewards (14)

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  - Payment
  - Monetisation
  - Free of charge

Open Source Software Stewards (14)

  - Monetisation
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Open Source Software Stewards (14)

- Legal persons other than a manufacturer

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Open Source Software Stewards (14)

- Natural or legal persons
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- Systematically provide support
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Commission guidance on the Cyber Resilience Act

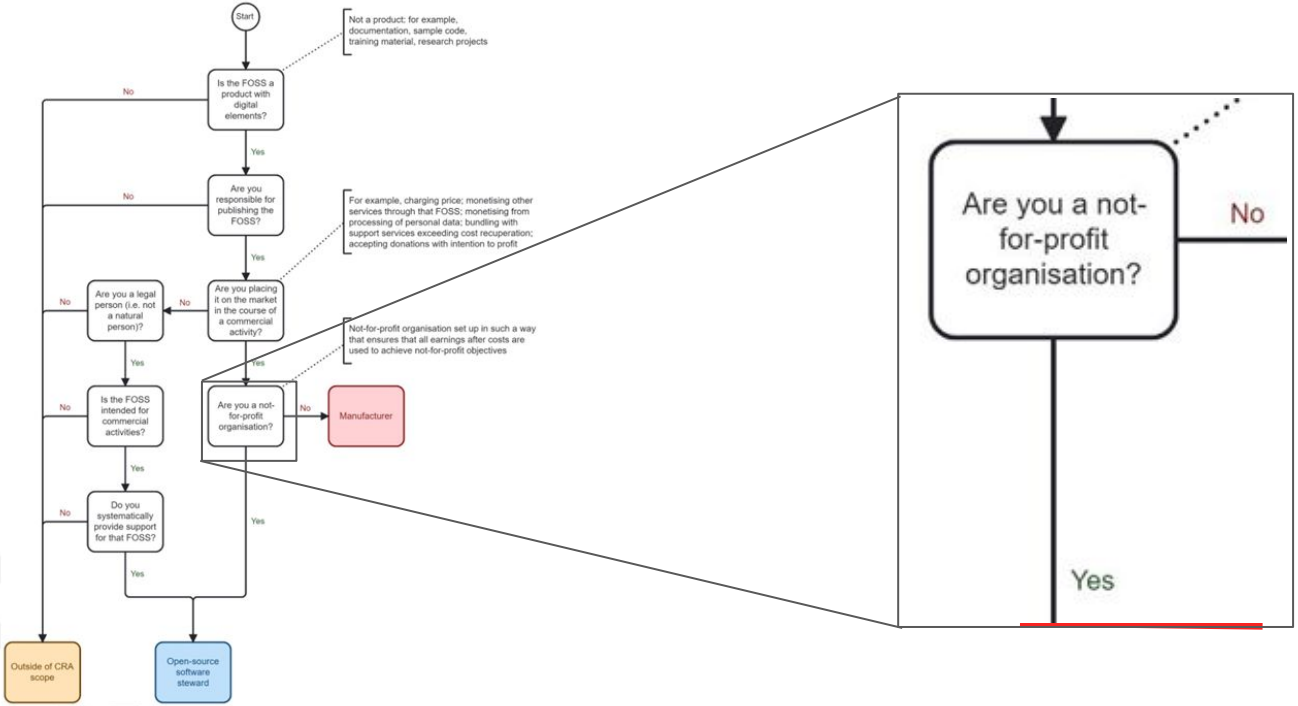

Figure 1: Stylised flowchart for CRA coverage of free and open-source software

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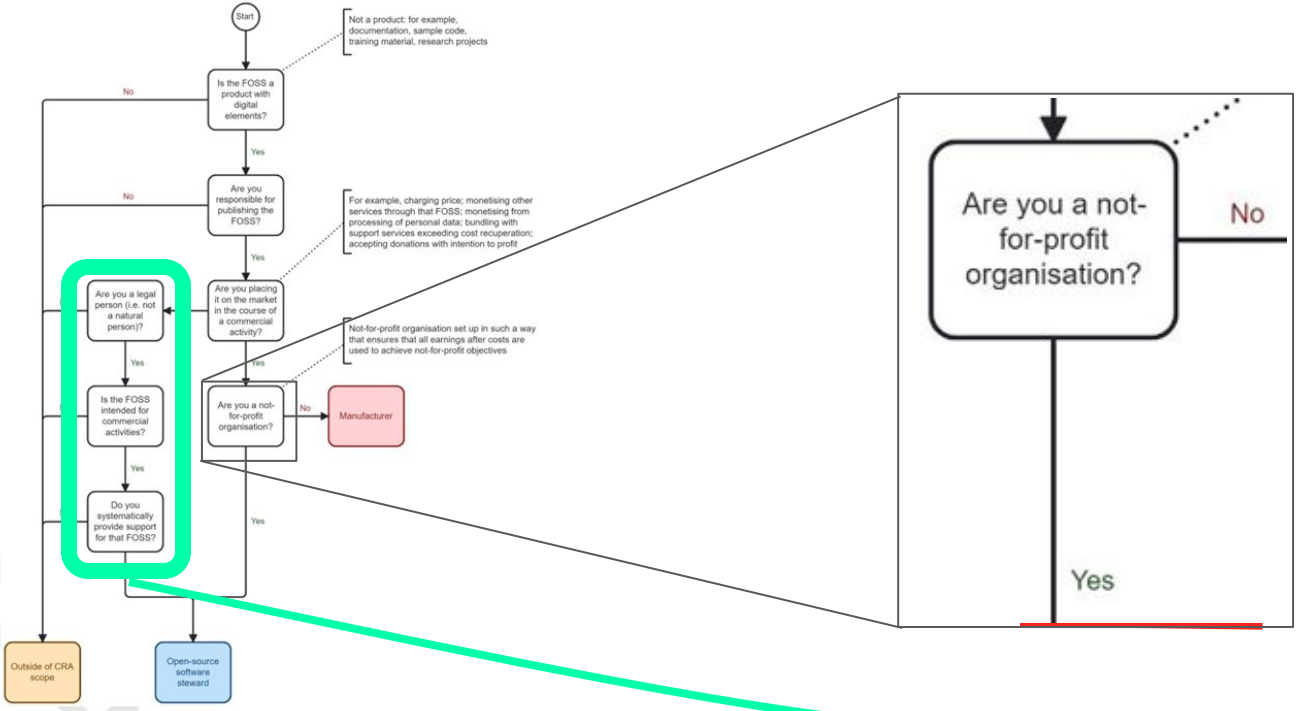

Figure 1: Stylised flowchart for CRA coverage of free and open-source software

Caveat IANAL:

After 69.
It get´s a bit confusing

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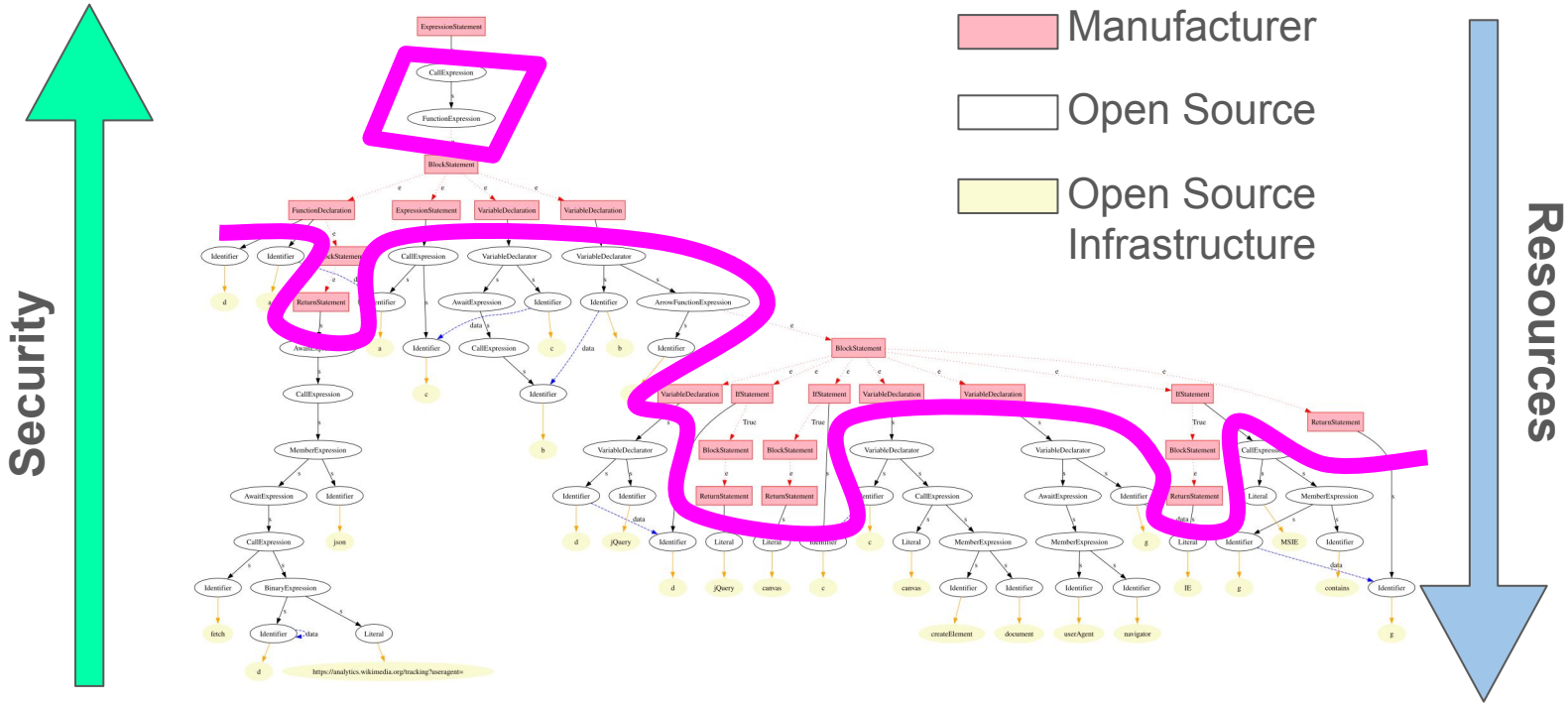
The CRA - the for-profit / commercialization boundary



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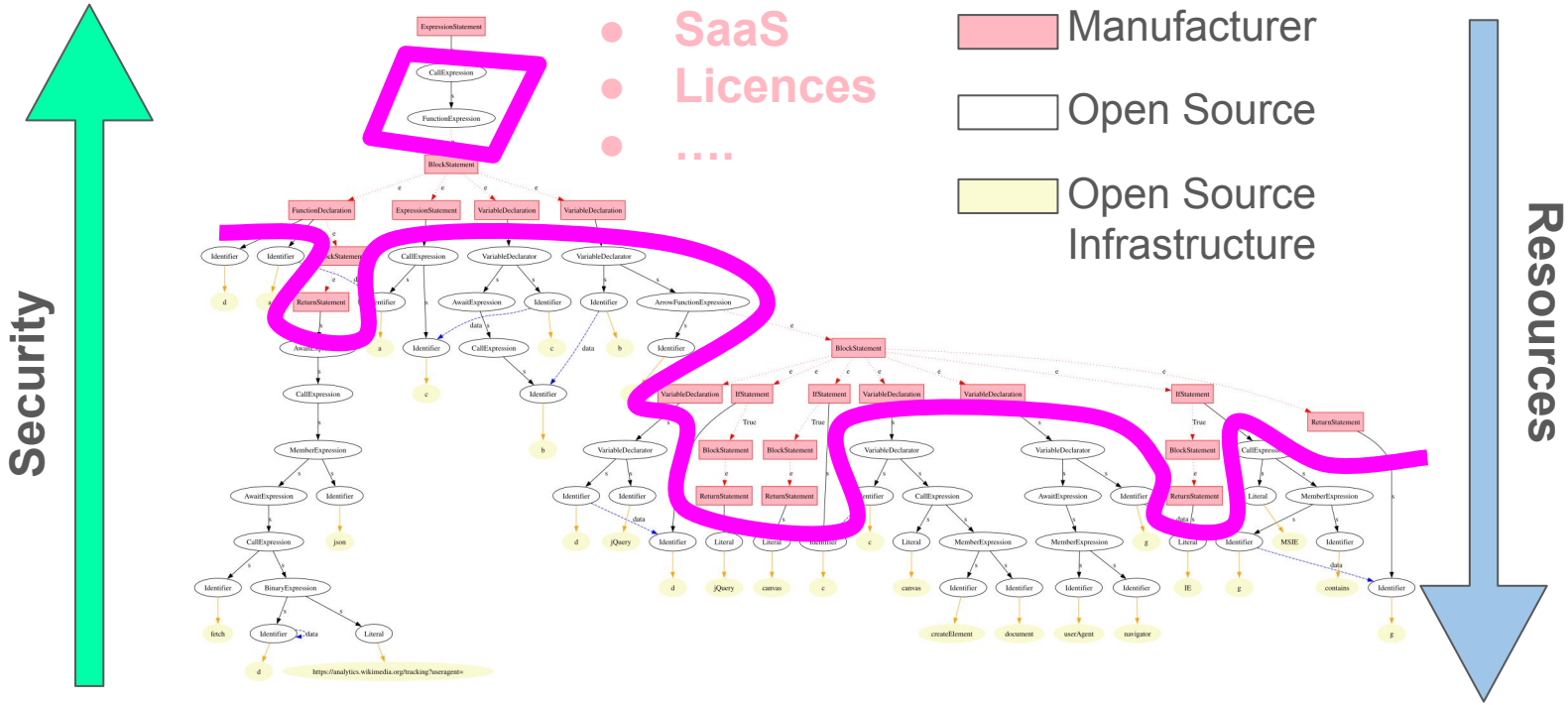
The CRA - a tale of two ecosystems



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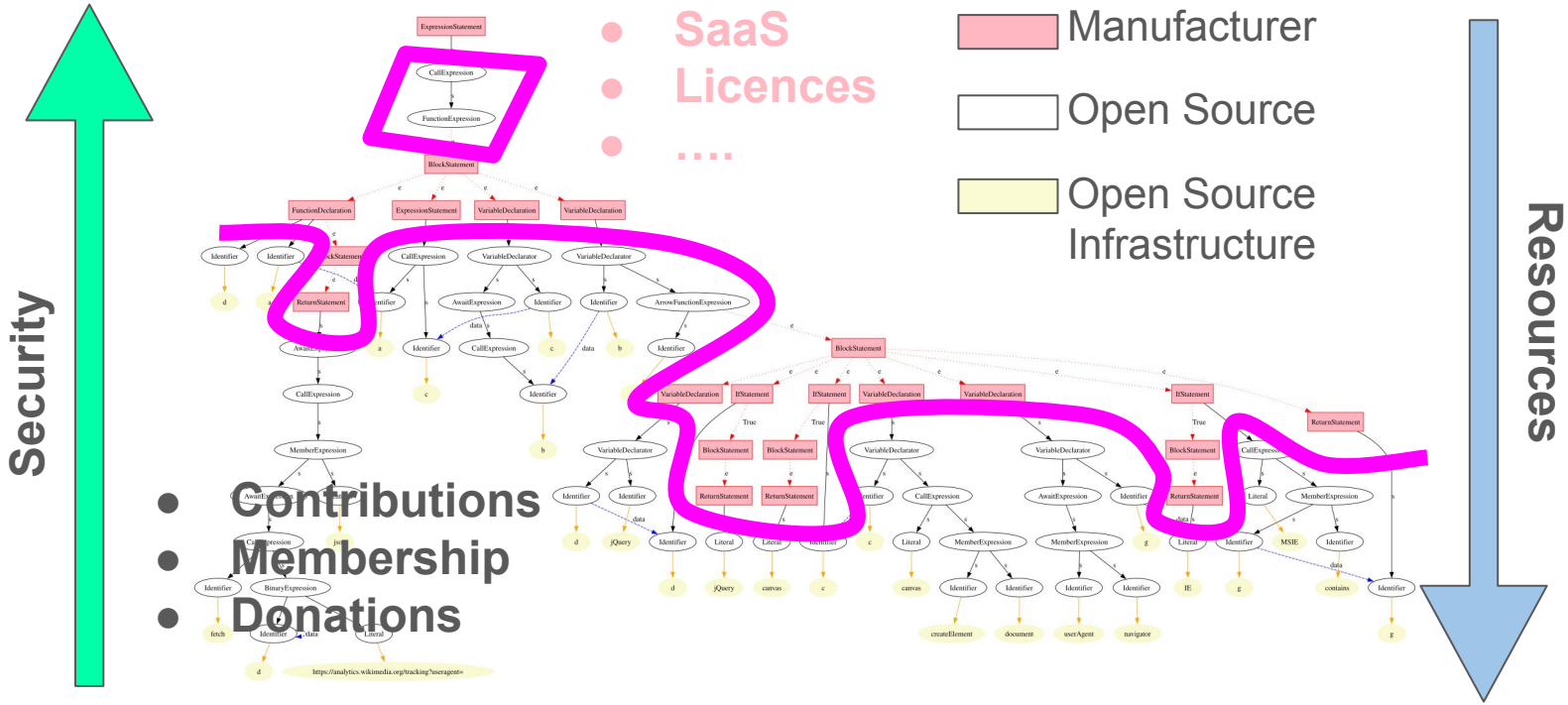

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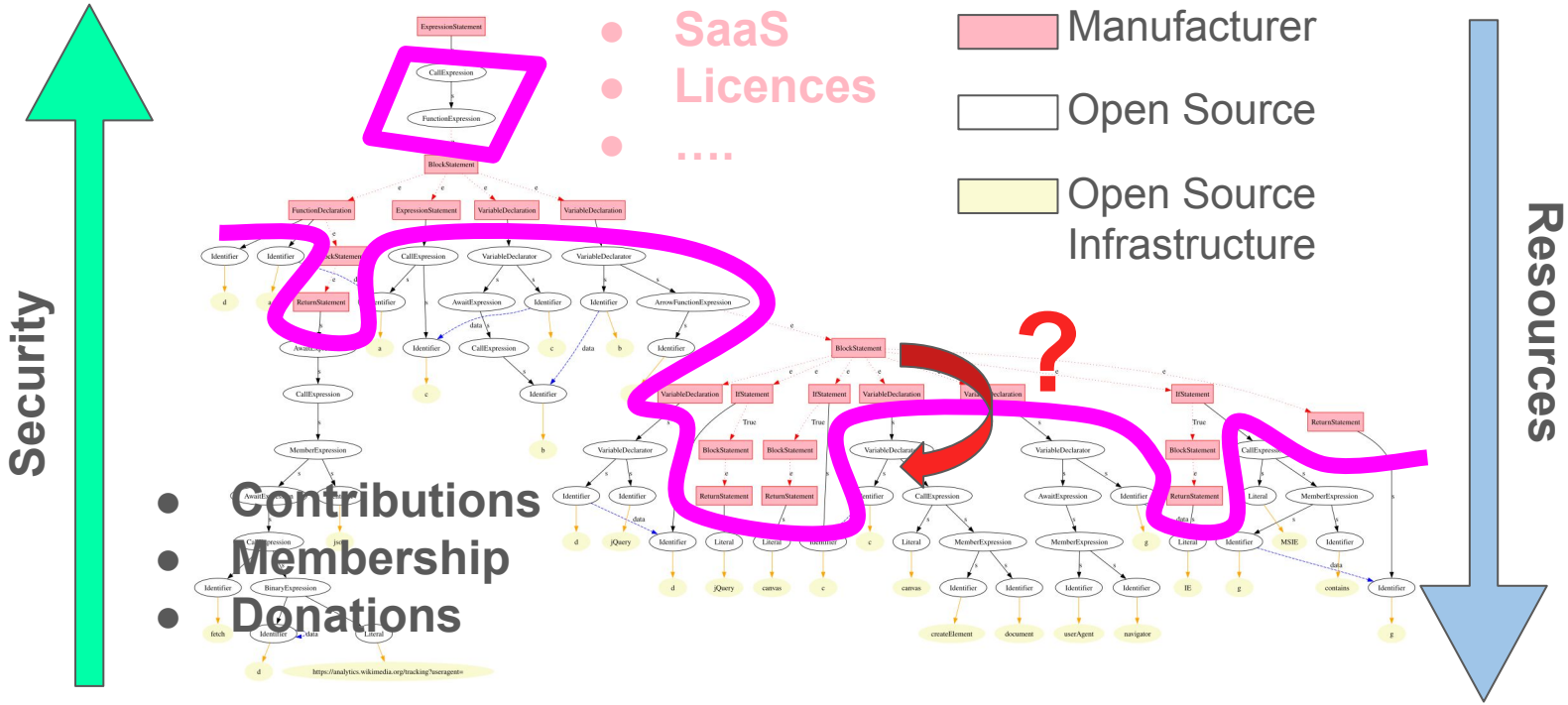

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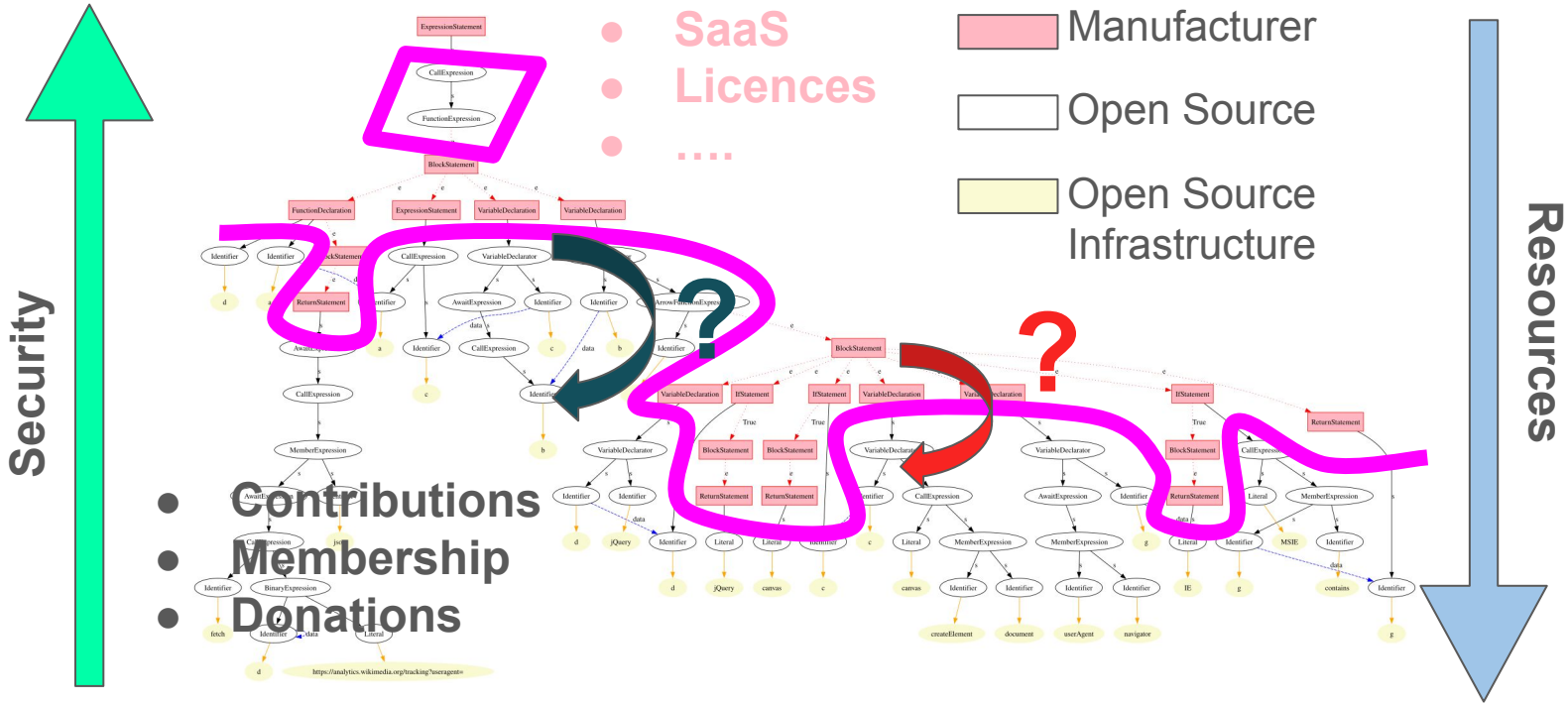

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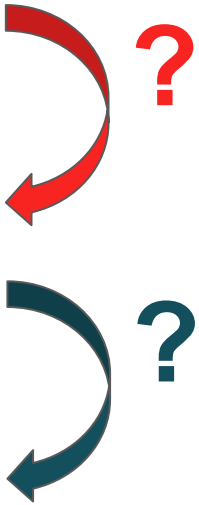
The CRA - Resource Distribution



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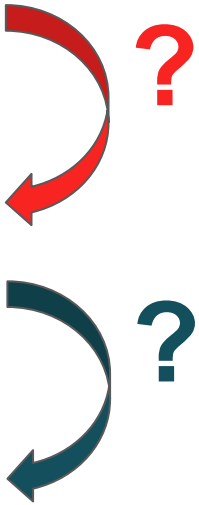

- Best Practice: Contributions Upstream stuff
  - SME Have your engineers commit
  - Cooperate: Have an OSPO

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The CRA - Resource Distribution

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- Challenges for Contributions - it does not scale
  - I bet Open Source Companies do not Upstream to EVERY project they use
  - Open Source projects are picky whom they wanna work with
  - There are non-software companies they still wanna use software

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- Legal Accountability for 3rd parties?

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Requirements of a resource distribution mechanism

- Win-Win
  - Fitting incentives for all stakeholders

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Incentives in the Ecosystem:

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Incentives in the Ecosystem: Commission Guidance on the CRA

1. Manufacturers:

   "*... If the manufacturer integrates the FOSS into its product, it needs to exercise due diligence in accordance with Article 13(5). ...*"

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Incentives in the Ecosystem:

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   a. Penalty:
   b. Liability:

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Incentives in the Ecosystem:

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   a. Penalty: 15 Mio. € or 2,5 % total worldwide annual turnover (CRA)
   b. Liability:

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   b. Transparency in the spirit of open source

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Incentives in the Ecosystem: What is due diligence?

1. “Bio code” from “happy” FOSS Projects? (CHAOSS Metrics etc.)

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Incentives in the Ecosystem: What is due diligence?

1. “Bio code” from “happy” FOSS Projects? (CHAOSS Metrics etc.)
2. Article 25:

   “…. In order to facilitate the due diligence obligation set out in Article 13(5), in particular as regards manufacturers that integrate free and open-source software [...] allowing the developers or users of products with digital elements qualifying as free and open-source software as well as other third parties to assess the conformity of such products with all or certain essential cybersecurity requirements or other obligations laid down in this Regulation. …”

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Requirements of a resource distribution mechanism

- Win-Win
  - Finance easing due diligence
- Scalable
  - Automatable
  - Self-service
  - Fair

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The proposal: Fair share cost token

1. Package includes pointer to metadata

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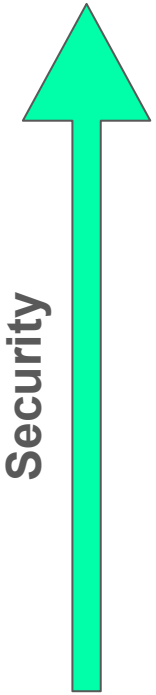
The proposal: Fair share cost token

1. Package includes pointer to metadata
2. Fair share cost token:
   a. Unique ID
   b. time-stamped
   c. payment info
   d. fair share cost indicator
   e. Crypto Key
   f. Pointer to announcement channel



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   a. Unique ID
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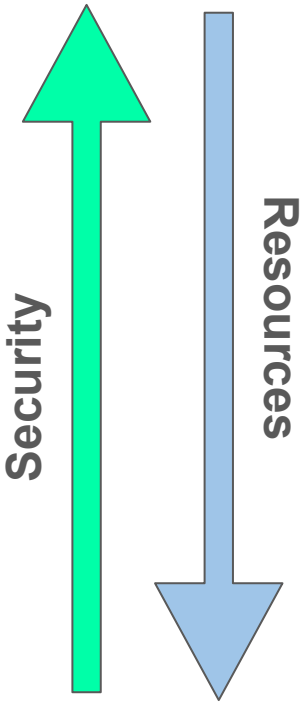
   f. Pointer to announcement channel
3. User:
   a. donates fair cost indicated by token,
   b. provides token ID



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How to create the ecosystem

- Scalable
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  - Reach the ppl who do the work

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  - Standards (SCITT@IETF)
  - Git hooks
  - ???

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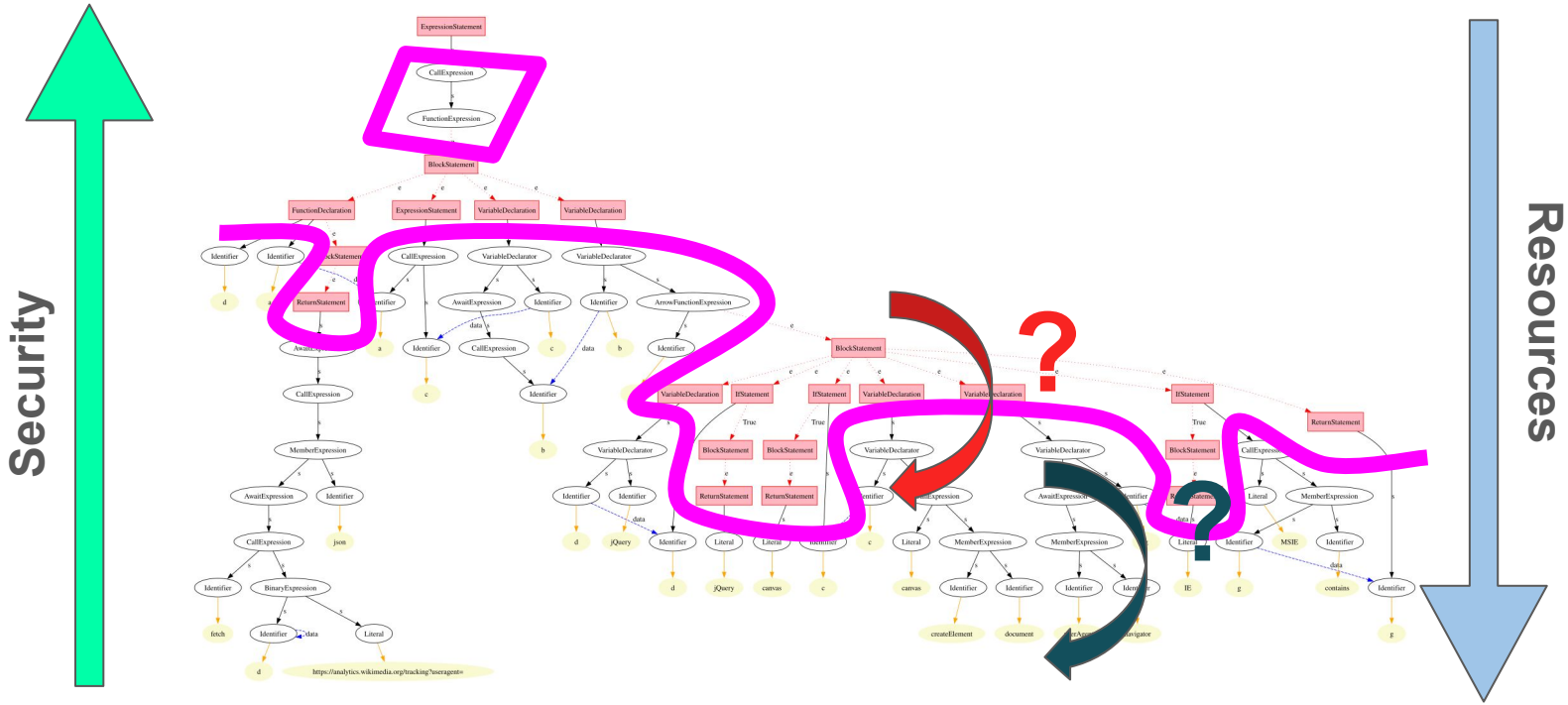
The CRA - down the rabbit hole



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How to create the ecosystem

- Scalable
  - Automatable
  - Self-service
  - Fair
- Efficient
  - Little overhead
- Effective
  - Reach the ppl who do the work

- Scalable
  - Standards (SCITT@IETF)
  - Git hooks
  - ???
- Efficient
  - A standard for token pricing?
- Effective
  - ❓ Donations by use

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  - ? continuable
  - Fitting incentives for everyone

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Win-Win? Gains for the Ecosystem:

1. Manufacturers:
    a. Problem becomes solvable with throwing money at the problem (non-software orgs)
    b. Pay-per-use, pay-per-due-diligence-coverage

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1. Manufacturers:
    a. Problem becomes solvable with throwing money at the problem (non-software orgs)
    b. Pay-per-use, pay-per-due-diligence-coverage
2. FOSS Projects:
    a. Unilateral contracts: no scaling overhead
    b. Transparency in the spirit of open source

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A future part of part the European Open Digital Ecosystem?

Given:

- Legal pathway for FOSS Projects to be recognizes as public benefit entity thus allowing to receive donations leading to legally binding accountability

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Given:

- Legal pathway for FOSS Projects to be recognizes as public benefit entity thus allowing to receive donations leading to legally binding accountability
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- Security.txt 2.0 security side channel

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A future part of the European Open Digital Ecosystem?

1. OS3: FOSS Project associates/becomes a public-benefit organization

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1. OS3: FOSS Project associates/becomes a public-benefit organization
2. OS3: Implements Cyber Security strategy
   a. incl. Voluntary Attestations (?)
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5. OS3: If vuln is found affected pulls receive encrypted update (iff payed?)

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Open Questions

1. Does the possibility of sanctions under the CRA
   and the absence of
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   force manufacturers
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5. What did I miss?

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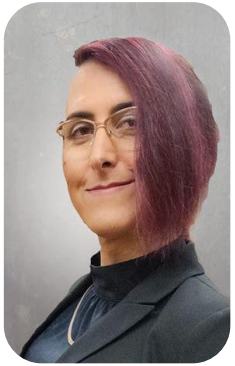
Call to action: Join the fray! Become an ORC - talk attestations

- Join the CRA Attestation Project
  https://github.com/orcwg/cra-attestations



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Looking forward to the discussion - What is missing?

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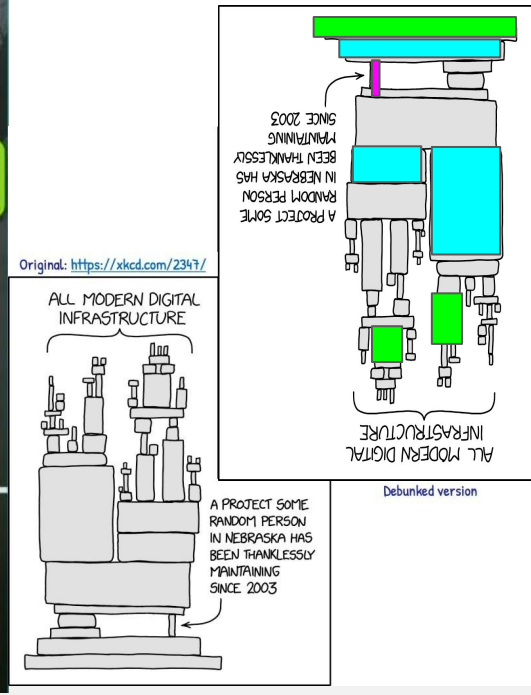
Open Policy Question: How to tax Open Source Software Stewards?



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Wtf … is the InÖG? A child of the pandemic

- March 2020
  Part of the #wirvsvirus Hackathon of the german government

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Wtf … is the InÖG? A child of the pandemic

#WIRVSVIRUS
DER HACKATHON DER BUNDESREGIERUNG

- March 2020
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  - digitales Wartezimmer - DataDump for public health centers

Digitales
Wartezimme

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  - Coronika - a contact diary

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Wtf … ist der InÖG? A child of the pandemic

- März 2020
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- September 2020
  Innovationsverbund Öffentliche Gesundheit
  #wivsvirus becomes #wirvsbleistift (us vs. pencils)

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- September 2020
  Start
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- März 2021 - IRIS connect
  IRIS-connect, a civil society response to the luca app

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IRIS connect

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Björn Steiger Stiftung
WIR HELFEN LEBEN RETTEN

- October 2021 - Impftermin
  When the vaccination looks for you!

- Die Chance zur Impfpflege bestanden
- Ab Oktober 2021 - Impftermi

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Wtf … ist der InÖG? A child of the pandemic

- März 2020
  Ursprung ist der #wirvsvirus Hackathon der Bundesregierung

- September 2020
  Zusammenschluss
  Innovationsverbund Öffentliche Gesundheit

- März 2021
  IRIS-connect, die
  Zivilgesellschaftliche Antwort auf die Luca-App

- Oktober 2021 - Impftermin
  Dein Impftermin bucht dich!

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What does the InÖG do? NGO, Tech & Forschung

- NGO Founding - 24.02.2022

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Was macht der InÖG? Vereinsmeierei, Tech & Forschung

- Vereinsgründung - 24.02.2022

- Gemeinnützigkeit - demnächst_TM

- Forschung mit der TU München
  - Bachelorarbeit
    "Wie kann am Beispiel des ÖGDs das Konzept des Crowdsou
    in der öffentlichen Verwaltung etabliert werden?"
  - Masterarbeit
    "Prozessanalyse der deutschen Gesundheitsämter"

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Was macht der InÖG? Vereinsmeierei, Forschung & Tech

- Vereinsgründung - 24.02.2022
- Gemeinnützigkeit - demnächst_TM
- Forschung mit der TU München
- Signierte Container - Sommer 2023

SiC

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Wie arbeitet der InÖG?

Innovationsverbund Öffentliche Gesundheit

Initiiert vom Innovationsverbund Öffentliche Gesundheit (InÖG) e.V.

- Impuls aus der Zivilgesellschaft
- Menschen stellen ihre Fachexpertise zur Verfügung
- arbeitet ehrenamtlich als Verein mit ähnlichem Verständnis wie THW, Samariter, DRK oder Malteser

Björn Steiger Stiftung
WIR HELFEN LEBEN RETTEN

Finanziert und gefördert durch u.a. die Björn Steiger Stiftung

- stellt Produktstruktur zur Verfügung, koordiniert Dienstleister für
- geregelten Verfahrensbetrieb und
- ist direkter Vertragspartner für die Öffentliche Hand

Kostenlos nutzbar für die Öffentliche Hand

- Softwareprodukte sind Open Source und werden der Öffentlichen Hand unentgeltlich bereitgestellt
- Digitalisierung wird vorangetrieben

digitale Agilität →

← Struktur

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